

Brij Mohan Son Of Shri Manohar Lal vs Smt. Nahani @ Neha D/O Shri Ramjilal W/O ... on 15 July, 2021

Bench: Sangeet Lodha, Mahendar Kumar Goyal

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

D.B. Civil Miscellaneous Appeal No. 876/2021

Brij Mohan Son Of Shri Manohar Lal, Aged About 22 Years, R/o
Near Jamun Bagh, Subhash Colony, Bharatpur, District Bharatpur
(Rajasthan.)

----Appellant

Versus

Smt. Nahani @ Neha D/o Shri Ramjilal W/o Shri Brij Mohan,
Aged About 20 Years, R/o Near Jamun Bagh, Subhash Colony
Bharatpur At Present House No. 165, Kabir Colony Alwar
(Rajasthan.)

----Respondent

For Appellant(s) : Mr. Raj Kumar Goyal

HON'BLE MR. JUSTICE SANGEET LODHA
HON'BLE MR. JUSTICE MAHENDAR KUMAR GOYAL

Order

15/07/2021

1. This appeal is filed by the appellant assailing the legality of the order dated 3.2.21 passed by the Family Court No.1, Bharatpur in Civil Case No.2/20, whereby while allowing an application preferred by the respondent under Section 24 of the Hindu Marriage Act, 1955 (for short "the Act of 1955"), the appellant is directed to pay maintenance pendente lite a sum of Rs.2500/- per month to the respondent-Smt. Nahani @ Neha upto 10 th Day of every month. That apart, the appellant is directed to pay a sum Rs.300/- towards litigation expenses to the respondent on each date of hearing.

2. The appellant filed a petition against the respondent for restitution of conjugal rights under Section 9 of the Act of 1955.

(2 of 4) [CMA-876/2021] During the pendency of the petition, the respondent filed an application under Section 24 of the Act of 1955, claiming maintenance pendente lite from the appellant a sum of Rs.10,000/- per month; Rs.11,000/- in lump sum towards the litigation expenses and advocate's

fees and Rs.1500/- towards litigation expenses on each date of hearing. The respondent averred in the application that she has no source of income whereas, the appellant is doing wooden work and earning Rs. 45,000/- per month.

3. The appellant filed a reply to the application contending that he is unemployed and he gets employment occasionally. It was further averred that he is ready to keep the respondent and maintain her.

4. After due consideration of the rival submissions, the Family Court determined the maintenance pendente lite payable by the appellant to the respondent a sum of Rs.2500/- per month and a Rs.300/- towards the litigation expenses on each date of hearing.

5. Learned counsel appearing for the appellant contended that the respondent has deserted the appellant and therefore, she is not entitled for any maintenance. It is submitted that without there being any cogent evidence regarding the appellant's income, the maintenance awarded by the Family Court is apparently excessive. Learned counsel submitted that parties have entered into compromise at the Mediation Centre, Bharatpur and agreed for divorce by mutual consent, however, the respondent has not adhered to the terms of compromise and therefore, she is not entitled for maintenance.

6. We have considered the submissions of the learned counsel and perused the material on record.

(3 of 4) [CMA-876/2021]

7. Indisputably, the purpose behind Section 24 of the Act of 1955 is to provide necessary financial assistance to the party to the matrimonial dispute who has no independent income of his own sufficient for her or his support or to bear the expenses of the proceedings. While considering the application for award of interim maintenance, the relevant consideration is the inability of the spouse to maintain himself or herself for want of independent income or inadequacy of the income to maintain at the level of social status of other spouse. No hard and fast rule can be laid down for determination of the amount of interim maintenance.

8. Admittedly, no evidence was brought on record by the appellant to establish that the respondent has her own source of income. Though, the appellant had denied his sources of income as alleged by the respondent but it was not even the case of the appellant that he has no source of income whatsoever. The factum of respondent deserting the appellant cannot be a ground to deny the maintenance pendente lite under Section 24 of the Act of 1955.

9. Thus, in absence of any evidence regarding the respondent having any adequate source of income, in the considered opinion of this Court, after due consideration of the facts and the circumstances of the case, the amount of maintenance pendente lite a sum of Rs.2500/- per month determined by the Family Court for the respondent and Rs.300/- towards litigation expenses including travelling expenses for each date of hearing, cannot be said to be excessive so as to warrant interference by us in exercise of appellate jurisdiction.

(4 of 4) [CMA-876/2021]

10. The alleged compromise arrived at between the parties, which is not given effect to, cannot be a ground to deny maintenance pendente lite to the respondent.

11. For the aforementioned reasons, the appeal is devoid of any merit, it is hereby, dismissed.

(MAHENDAR KUMAR GOYAL),J (SANGEET LODHA),J ADITYA JOSHI /3 Powered by TCPDF
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